Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers, Ajax Town Hall and Electronically on Monday, May 21, 2024

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 1:01 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

Motion to Suspend the Rules of Procedure

Moved by: S. Lee
Seconded by: L. Bower

That the Rules of Procedure be waived to add a Notice of Motion – 9.3 Temporary Opening of the Ashbury Boulevard and Range Road Link.

CARRIED
on 2/3rds

3. Adoption of the Minutes

Moved by: R. Tyler Morin
Seconded by: M. Crawford

That the minutes of the Regular Meeting of Council held on April 15, 2024 be adopted.

CARRIED

4. Question Period

Mayor Collier invited questions on agenda items from those present.

5. Delegations, Presentations, and Public Meetings

5.1 Delegation: Degree, Certificate, or Designation Achievements

Shane Baker, Chief Administrative Officer, acknowledged employee achievements and presented certificates as follows:

- Jodi Leary – NIGP-CPP designations from the Institute for Public Procurement – Certified Procurement Professional; and Technology Procurement Specialization Certificate
- Harpeet Mann – Payroll Leadership Professional (PLP) Designation
- Shane Christensen – Municipal Law Enforcement Officer Certification M.L.E.O.(c)
- Caitlin Dusome – Certified Information Systems Security Professional

- Chris Walker – Graduate DPA in Public Administration (Local Government Program) from Western University
- Nathan Landry – Full Certified Planning Technicians (CPT) Designation
- Sean Jeffrey – Full Member of OPPI & CIP (RPP & MCIP Designation)
- Dhiman Saha – Professional Engineer Designation (P. Eng)
- Chris Porter – 1021 Fire Officer Level III
- Shain Kimbell – IMS 300
- Phil Spackman – Gas Technician One (G1) Certificate through TSSA

With the consent of Members present, item 5.5 was advanced in the order business.

5.5 **Presentation: Durham Regional Annual Update**

John Henry, Regional Chair & Chief Executive Officer, The Regional Municipality of Durham, presented the Durham Regional Annual Update, reviewing key themes – growth, safe and healthy communities, mobility, and innovation.

Council Members asked questions related to the presentation. Chair J. Henry responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked Chair J. Henry for his presentation.

5.2 **Delegation: Removal of Bike Lanes on Harwood Avenue South**

Derek Lee, Ajax resident, delivered a presentation regarding the removal of bike lanes on Harwood Avenue South.

Council Members asked questions related to the presentation. Zach Osborne, Ajax resident and D. Lee responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked D. Lee for his delegation.

5.3 **Proclamation: National AccessAbility Week 2024**

Sarah Moore, Legislative Specialist and Rosanne Purnwasie, Accessibility Advisory Committee Co-Chair, delivered a presentation regarding National AccessAbility Week 2024.

Council Members asked questions related to the presentation. S. Moore responded to questions from Council Members.

Mayor Collier proclaimed May 26 – June 1, 2024 as National AccessAbility Week in the Town of Ajax.

On behalf of Council, Mayor Collier thanked S. Moore and R. Purnwasie for their presentation.

5.4 **Proclamation: Aging Well Month**

Moninder Nahar, Community Recreation Coordinator, Nadia Singh, Older Adult Task Force Member, Terri Stewart, Older Adult Advisory Committee Member, and Elaine Lievaart, Community Engagement Associate, Ajax Public Library, delivered a presentation regarding Aging Well Month, highlighting upcoming activities for the month of June.

Council Members asked questions related to the presentation. M. Nahar responded to questions from Council Members.

Mayor Collier presented the proclamation certificate and proclaimed June 2024 as Aging Well Month in the Town of Ajax.

On behalf of Council, Mayor Collier thanked M. Nahar, N. Singh, T. Stewart, and E. Lievaart for their presentation.

5.6 **Presentation: 2023 Grants and Partnerships Update**

Liam Nichols, Grants and Strategic Initiatives Coordinator, provided an update on 2023 grant and partnership activities.

Council Members asked questions related to the presentation. L. Nichols, Dianne Valentim, Director of Finance/Treasurer, Kassandra Cruciano, Manager of Strategic Initiatives, and

Christie McLardie, Director of Public & Strategic Affairs, responded to questions from Council Members.

5.7 **Public Meeting: PDS-2024-12: Zoning By-law Amendment Z2/24**
Simone Sewell
456 Kingston Road West

Sean Jeffrey, Development Planner, delivered a presentation reviewing the contents of the written report and the recommendations contained therein.

Council Members asked questions related to the presentation. S. Jeffrey and Geoff Romanowski, Director of Planning & Development Services, responded to questions from Council Members.

Mayor Collier declared the meeting to be a public meeting and invited comments and questions from the public.

Rene Soetens, Ajax resident, expressed concerns regarding drainage, site access and traffic flow, and building height. G. Romanowski responded to concerns from the delegate.

There being no further questions or comments from the public, Mayor Collier closed the public meeting and invited comments from the applicant.

Simone Sewell, applicant, addressed concerns related to parking.

Council Members asked questions related to the proposed development application. S. Sewell responded to questions from Council Members.

Moved by: S. Lee
Seconded by: S. Collier

1. That Zoning By-law Amendment Application Z2/24 be approved and that the implementing Zoning By-law, as provided in Attachment 1 to this report, be considered for approval by Council at its meeting on May 21, 2024.

CARRIED

Council recessed at 3:20 p.m.

Council resumed at 3:25 p.m.

5.8 **Public Meeting: PDS-2024-13: Zoning By-law Amendment Z1/24**
850 Riverside Inc.
850 Riverside Drive

Nathaniel Landry, Development Planner, delivered a presentation reviewing the contents of the written report and the recommendations contained therein.

Council Members asked questions related to the presentation. N. Landry responded to questions from Council Members.

Mayor Collier declared the meeting to be a public meeting and invited comments and questions from the public.

There being no questions or comments from the public, Mayor Collier closed the public meeting and invited comments from the applicant.

Muhammand Khan, 850 Riverside Inc., applicant, commended staff and expressed support for the staff report and recommendations contained therein.

Moved by: M. Crawford
Seconded by: S. Lee

1. That Zoning By-law Amendment Application Z1/24 be approved and that the implementing Zoning By-law, as provided in Attachment 1 to this report, be considered for approval by Council at its meeting of May 21, 2024.

CARRIED

6. Correspondence

Members separated correspondence item 6.2 for discussion.

Moved by: R. Tyler Morin
Seconded by: M. Crawford

That the balance of the report (Items 6.1, 6.3, 6.4, 6.5, 6.6, 6.7, 6.8, 6.9, 6.10 and 6.11) dated May 21, 2024 containing Items of Correspondence be received for information.

CARRIED

Item 6.2

Council Members asked questions regarding the status of discussions related to eliminating stormwater management fees on agricultural properties. S. Baker responded to questions from Council Members.

Moved by: L. Bower
Seconded by: N. Henry

That Item 6.2 ("The Regional Municipality of Durham – Durham Agricultural Advisory Committee Resolution re: Stormwater Management Fees") of the Correspondence Report be received for information.

CARRIED

7. Reports

7.1. Community Affairs & Planning Committee Report

None

7.2. General Government Committee Report

7.2.1 General Government Committee, May 13, 2024

Moved by: N. Henry
Seconded by: S. Lee

That the General Government Committee Report dated May 13, 2024 be adopted.

CARRIED

7.3 Summary of Advisory Committee Activities

Moved by: L. Bower
Seconded by: J. Dies

That the Summary of Advisory Committee Activities Report dated May 21, 2024, as attached to the meeting agenda be received for information, and that the recommendations contained therein be referred to staff where applicable.

CARRIED

7.4 Departmental Reports

7.4.1 APL-2024-01: Library Services 2024 Spring Update

Council Members asked questions related to the contents of the report. Sarah Vaisler, Chief Librarian and Executive Officer, responded to questions from Council Members.

Moved by: M. Crawford
Seconded by: R. Tyler Morin

1. That the Library Services 2024 Spring Update be received for information.

CARRIED

8. Regional Councillors' Report

Regional Councillor Members provided updates from the Region related to Durham

Region's blue box and green bin programs, automated cart-based garbage collection, Durham-Scarborough BRT construction timelines, and Great Lakes and St. Lawrence Cities initiatives.

Council Members asked questions related to the reports. Regional Councillor Crawford responded to questions from Council Members.

Moved by: S. Lee
Seconded by: N. Henry

That the Regional Councillors' Reports of May 21, 2024 be received for information.

CARRIED

9. Business Arising from Notice of Motion

9.1 Mental Health and Suicide Awareness through Operation White Heart

Regional Councillor Crawford and Councillor Bower introduced the motion and reviewed its contents. Council Members asked questions related to opportunities for community participation. Regional Councillor Crawford responded to questions from Council Members.

Moved by: M. Crawford
Seconded by: L. Bower

WHEREAS Operation White Heart is an awareness project focused on promoting conversations about mental health and suicide, utilizing basic landscaping supplies like mulch and white stones to create a white heart;

AND WHEREAS more than 500 hearts have been installed across Saint John, New Brunswick and the surrounding area since Gary Brown founded Operation White Heart in 2021, including a 16-foot heart at the Giant Steps Wellness Park;

AND WHEREAS according to the Canadian Mental Health Association, 1 in 5 people in Canada will personally experience a mental health problem or illness;

AND WHEREAS the Town of Ajax can show support of individuals who are experiencing a mental health problem or illness and those who have lost loved ones to mental illness by implementing an Operation White Heart public art installation in the Town;

AND WHEREAS individuals experiencing a mental health crisis in Durham Region can call 9-1-1 if they require emergency services, or call and text 9-8-8 to access bilingual, trauma-informed, and culturally appropriate mental health and suicide prevention support;

NOW THEREFORE BE IT RESOLVED THAT:

1. Recreation and Culture staff, with support from Operations and Environmental Services, design and install a 12-foot white heart and associated signage at Rotary Park by October 31, 2024;

2. Unbudgeted funds up to $2,500 be provided using the 2024 Recreation and Culture Operating Budget, as per the Operating Budget Management Policy;

3. Communications and Engagement staff promote the installation on the Town's social channels and invite residents to implement Project White Heart on their own properties; and

4. A copy of this motion be shared with all lower tier Durham Region Municipalities.

CARRIED

9.2 Calling on the Province to Recognize Ajax's Progress on Housing and Honour its $4-Million Commitment

Mayor Collier and Regional Councillor Crawford introduced the motion and reviewed its contents. Council Members sought clarification regarding the circulation list. Mayor Collier responded to the question from Council Members.

Moved by: S. Collier
Seconded by: M. Crawford

WHEREAS the provincial government announced the Building Faster Fund (BFF) in August 2023 to provide up to $1.2 billion over three years to help qualifying municipalities pay for critical housing and community-enabling infrastructure to accommodate growth;

AND WHEREAS the Town of Ajax was issued a target of 1,247 housing unit starts in the 2023 BFF Program Year, and 17,000 new housing units by 2031;

AND WHEREAS Ajax Council has taken bold steps to encourage the development of new homes, from the introduction of five unanswered Minister's Zoning Order and Community Infrastructure and Housing Accelerator applications, to new policy direction to allow four residential units as of right and increasing allowable building heights along transit corridors;

AND WHEREAS according to staff report PDS-2024-10, Ajax Housing Pledge 2023 Progress Report, Ajax had 1,121 Housing Starts in 2023;

AND WHEREAS this accounts for 90% of the Town's 2023 target and would qualify Ajax to receive approximately $4-million under the BFF;

AND WHEREAS on February 14, 2024, the Town received a letter from the Minister of Municipal Affairs and Housing (MMAH), Paul Calandra, stating that, according to Canada Mortgage and Housing Corporation (CMHC) data, the Town had only reached 64% of its target and therefore had not qualified to receive funds;

AND WHEREAS despite outreach from the Town to identify missing data, the CMHC will not revise past data and MMAH will not intervene;

AND WHEREAS several municipalities across the province have identified similar challenges, resulting in promises at both the federal and provincial level to modernize the way housing data is collected;

NOW THEREFOR BE IT RESOLVED THAT:

1. Ajax Council ask the federal and provincial governments to engage the Town of Ajax, Ontario municipalities, the Association of Municipalities of Ontario (AMO), and Ontario Big City Mayors (OBCM) to identify opportunities to improve the accuracy of housing starts data;

2. Ajax Council ask the provincial government to work with municipalities and CMHC to revisit data from the 2023 BFF Program Year and make good on payments to the Town of Ajax and other municipalities resulting from faulty data; and

3. A copy of this motion be shared with the Honourable Sean Fraser, Minister of Housing, Infrastructure and Communities, the Honourable Mark Holland, MP for Ajax, the Honourable Paul Calandra, Minister of Municipal Affairs and Housing, Patrice Barnes, MPP for Ajax, all lower tier Durham Region municipalities, AMO, and OBCM.

CARRIED

9.3 Temporary Opening of the Ashbury Boulevard/Range Road Link

Mayor Collier and Councillor Bower introduced the motion and reviewed its contents.

Moved by: S. Collier
Seconded by: L. Bower

WHEREAS Range Rd. from Ashbury Blvd. to Lake Ridge Rd. was reconstructed in 2018 to bring it to current Town standards as a rural cross-section;

AND WHEREAS the link from Ashbury Blvd. to Range Rd. remains closed as Town staff have recommended that the reconstruction of lower portion of Lake Ridge Rd. S. (south of Bayly St. E.) be completed first;

AND WHEREAS the reconstruction of Lake Ridge Rd. is forecasted in the long range budget to cost $15,458,800;

AND WHEREAS residents of Range Rd. and Ontoro Blvd. have asked for an alternative point of exit from the south end of Lake Ridge Rd. in the event of an emergency;

AND WHEREAS opening the link from Ashbury Blvd. to Range Rd. would provide Lakeside residents with more transportation options;

NOW THEREFORE BE IT RESOLVED THAT:

1. Operations and Environmental Services with support from Planning and Development Services be directed to:

   a) make any necessary temporary trail crossing improvements for the trail at Ashbury Blvd. and Range Rd.;
   b) conduct a baseline traffic count at Ashbury Blvd. and Audley Rd.;
   c) facilitate the opening of the Ashbury Blvd. and Range Rd. link;
   d) conduct traffic data collection between June 1, and September 30, 2024; and
   e) report back to Council with results of the count by the end of 2024; and

2. Public and Strategic Affairs staff be directed to give written notice of the temporary opening to the area residents; and

3. Unbudgeted funds up to $10,000, be funded from the capital contingency reserve.

CARRIED

10. By-laws

Moved by: J. Dies
Seconded by: L. Bower

That By-law numbers 30-2024 to 35-2024 be read a first, second and third time and passed.

CARRIED

11. Notice of Motion

None.

12. New Business - Notices & Announcements

Correspondence Item 6.11 (“Residents of the Town of Ajax – Petition in Relation to Removal of Bike Lanes on Harwood Avenue South”)

Council recessed at 4:29 p.m.

Council resumed at 4:57 p.m.

Moved by: J. Dies
Seconded by: N. Henry

Be it resolved that Council:

1. Reaffirm support for the approved recommendations contained in the Lower Harwood Study between Lake Driveway and Bayly Street; and

2. Reaffirm support for the 2021 recommendations from staff that the on-street bike lanes and vehicle lanes remain in place from McRae Road to Westney Road South.

MOTION LOST

Council Members highlighted upcoming community events and matters of community interest.

13. Confirming By-Law

Moved by: R. Tyler Morin
Seconded by: M. Crawford

That By-law number 36-2024 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on May 21, 2024, be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: N. Henry
Seconded by: S. Lee

That the May 21, 2024 meeting of the Council of the Town of Ajax be adjourned (5:25 p.m.)
CARRIED

_____
Mayor

_____
D-Clerk